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Case Number: 24STCV28029 Hearing Date: July 6, 2026 Dept: 224

ADRIANA G HENRY VS ALTHEA ADELE FRAHM, CO-TRUSTEES OF THE THEODORA ADELE FRAHM TRUST, DATED SEPTEMBER 23, 1988, ET AL.

TENTATIVE RULING

The Court initially set this matter for prove-up hearing on July 6, 2026, but now finds there are legal issues that must be addressed before a prove-up hearing. Accordingly, the Court will continue the prove-up hearing, and orders briefing on the issues identified herein. The Court must first be satisfied that all persons or entities with interests in the property have been named as Defendants, or nominal defendants. A prove-up hearing will be set once the Court is satisfied that all persons with legal interests in the property, including Wells Fargo, have received required notice.

Plaintiff will need to address with legal authorities: 1) whether Plaintiff's claim is based upon adverse possession under color of title pursuant to Code of Civil Procedure section 322 or adverse possession without color of title; 2) Whether Plaintiff is required to name Wells Fargo, the bank holding the mortgage, and/or give them notice of a prove-up hearing; 3) Whether Plaintiff was required to give notice to Wells Fargo of Plaintiff's claim of title or ownership of the property during the adverse occupancy of the property, or before today's hearing.

With respect to evidence, Plaintiff will need to clarify whether property taxes were paid through an escrow account. While Plaintiff has submitted proof of receipts demonstrating that property taxes have been paid, that is not evidence that Plaintiff paid the property taxes.

Briefs and evidence regarding whether all required Defendants have been joined to this case, are due no later than September 30, 2026. The Court sets a Status Conference Regarding Whether Plaintiff Has Named and Served All Required Defendants for October 22, 2026 at 8:30 a.m. After reviewing Plaintiffs legal arguments, the Court may order naming Wells Fargo and Proof of Service of Process on them.

ANALYSIS

Factual Background

Plaintiff Adriana G. Henry seeks default judgment quieting title to the real property located at 2306 Lambert Drive, Pasadena, California 91107-2502, APN 5744-014-025. The complaint names Althea Adele Frahm and Jacqueline Louise Frahm (as co-trustees of the Theodora Adele Frahm Trust), their testate and intestate successors, unknown claimants, and Does 1-50 (who have since been dismissed.) The complaint alleges Plaintiff assumed possession of the property in or about May 2019, and occupied and used the property as her primary residence, maintained and improved the property, and paid all taxes on the property during the five-year period prior to this action being filed.

The Complaint alleges that Plaintiff "paid the mortgage all by herself without the permission of the property's record owner - Althea Adele Frahm and Jacqueline Louise Frahm, Co-Trustees of the Theodora Adele Frahm Trust, Dated September 23, 1988 (Defendant)." (Compl. Paragraph 12.) Plaintiff further alleges that "there are no known persons claiming interest in the Property." (Id.)

The proposed judgment requests that the Court declare Plaintiff the sole owner of the property in fee simple, quiet title against all adverse claims, bar Defendants from asserting adverse claims, and expunge the lis pendens recorded February 21, 2025. Plaintiff requests an evidentiary prove-up hearing, and states that they are prepared to present live testimony and authenticate the previously filed evidence.

Plaintiff has submitted a proposed judgment together with declarations from counsel, Plaintiff, Sergio Lopreiato, and a supplemental declaration. The proposed judgment requests the same quiet title relief sought in the Complaint.

Adverse Possession

Code of Civil Procedure section 322 provides:

"When it appears that the occupant, or those under whom he claims, entered into the possession of the property under claim of title, exclusive of other right, founding such claim upon a written instrument, as being a conveyance of the property in question, or upon the decree or judgment of a competent court, and that there has been a continued occupation and possession of the property included in such instrument, decree, or judgment, or of some part of the property, under such claim, for five years, the property so included is deemed to have been held adversely, except that when it consists of a tract divided into lots, the possession of one lot is not deemed a possession of any other lot of the same tract."

Quiet Title Actions Following Default in Adverse Possession Actions

California Code of Civil Procedure section 764.010 expressly prohibits the entry of a default judgment in a quiet title action. Instead, "[t]he court shall not enter judgment by default but shall in all cases require evidence of plaintiff's title and hear such evidence as may be offered respecting the claims of any of the defendants." (Code Civ. Proc., § 764.010.)

Although a traditional default judgment is unavailable in a quiet title action based on adverse possession, a plaintiff is not without recourse when properly named defendants fail to respond. After defaults have been entered, the plaintiff may obtain judgment only after the court conducts the statutorily required evidentiary hearing and determines that the plaintiff has established all elements of adverse possession. (Code Civ. Proc., §§ 322–325; Civ. Code, § 1007.)

As explained by the Court of Appeal:

"If a court holds a properly noticed evidentiary hearing and no defendant turns up, then the court renders judgment 'in accordance with the evidence and the law,' based on what it has before it. This would not be a default judgment; any defendant, even one in default, has the right and the opportunity to appear and present evidence. This is another reason for scheduling and holding a hearing in open court; it allows the court to finish the case without falling foul of the statute.

(Harbour Vista, LLC v. HSBC Mortgage Services Inc. (2011) 201 Cal.App.4th 1496, 1508.)

Proof of Service/Default

Defaults against the named defendants were entered on June 20, 2025.

Principal Requested

None. This is a quiet title action.

Discussion

I. Default Has Been Entered Only Against the Named Defendants

After reviewing Plaintiff's request for judgment following default, the Court requires additional evidence and legal briefing establishing that all persons or entities entitled to notice of the quiet title prove-up hearing have received proper notice.

The Complaint alleges that Plaintiff named and served all persons believed to have an interest in the property, including:

Althea Adele Frahm and Jacqueline Louise Frahm, Co-Trustees of the Theodora Adele Frahm Trust, dated September 23, 1988;

The testate and intestate successors of Althea Adele Frahm, deceased;

The testate and intestate successors of Jacqueline Louise Frahm, deceased; and

All persons unknown claiming any legal or equitable right, title, estate, lien, or interest adverse to Plaintiff's claimed title. Plaintiff also dismissed Does 1 through 50 on July 3, 2025, the only parties against whom judgment is not sought.

Counsel further declares that, after unsuccessful efforts to locate additional defendants, the Court authorized service by publication, publication was completed, and no defendant appeared or responded.

The Court nevertheless requires further briefing because the evidence submitted in support of Plaintiff's application demonstrates that Wells Fargo is the holder of the mortgage encumbering the property. Despite this apparent interest in the property, Wells Fargo was not named as either a defendant or a nominal defendant.

Plaintiff has not addressed whether Wells Fargo possesses an interest that required it to be joined in this action or, alternatively, why Plaintiff was excused from naming and serving Wells Fargo. Before conducting the required evidentiary hearing, the Court must be satisfied that every person or entity with a potential interest in the property has received constitutionally adequate notice and an opportunity to be heard. (Harbour Vista, LLC v. HSBC Mortgage Services Inc., supra, 201 Cal.App.4th at p. 1508 (mortgage holder was named in a quiet title action and received notice of lis pendens).)

The declaration regarding military status states only that the defendants are "deceased or unknown to Plaintiff or Plaintiff's attorney."

II. Wells Fargo

The evidence submitted by Plaintiff reflects that Wells Fargo has remained the mortgage holder throughout Plaintiff's alleged period of adverse possession. The record contains no evidence that Plaintiff notified Wells Fargo that the borrowers had died or that Plaintiff intended to continue making mortgage payments while asserting ownership of the property adverse to all competing interests.

Rather, the evidence contained in Exhibit G to the Declaration of indicates Plaintiff made mortgage payments on a loan that remained in the name of a deceased borrower. Each Wells Fargo bank statement is addressed to "Jacqueline L. Frohm at 2306 Lambert Dr. Pasadena, California 91107." All of the mortgage statements remain addressed to Jacqueline Frohm, long after her death. (Exhibit G.) There is no evidence that Plaintiff was legally permitted to take over the Wells Fargo loan in Ms. Frohm's name, that Wells Fargo was ever informed of the borrower's death or that Plaintiff asserted any ownership interest inconsistent with Wells Fargo's recorded security interest.

Accordingly, the Court requires additional evidence establishing whether Wells Fargo was informed of the deaths of the joint tenants on the Grant Deed--particularly the borrower, Jacqueline Frahm. If Wells Fargo was not notified, Plaintiff shall provide legal authority explaining how the facts presented satisfy the requirements of adverse possession where Plaintiff continued making mortgage payments to Wells Fargo without informing the lender of either the borrowers' deaths or Plaintiff's adverse claim of ownership.

The Court also requires supplemental briefing addressing whether Wells Fargo is a necessary party to this quiet title action or, at a minimum, should have been named as a nominal defendant. Plaintiff has long been aware of Wells Fargo's recorded interest, having made mortgage payments directly to Wells Fargo on a loan that was not in Plaintiff's name.

Finally, Plaintiff shall clarify whether the claim is based upon adverse possession under color of title pursuant to Code of Civil Procedure section 322 or adverse possession without color of title. If Plaintiff contends the claim is based upon color of title, Plaintiff shall identify the written instrument upon which that claim rests and explain when, if ever, Plaintiff asserted or recorded an adverse claim of title.

If Plaintiff does not rely upon color of title, Plaintiff shall submit supplemental legal authorities addressing how the elements of adverse possession have been satisfied under the facts presented, including whether Plaintiff's possession was sufficiently open, notorious, and hostile as against Wells Fargo despite the absence of evidence that Wells Fargo received notice of Plaintiff's adverse claim.

Lis Pendens

Plaintiff also recorded a Lis Pendens on February 17, 2025, giving notice that this action was pending giving notice to all of Plaintiff's claims seeking to quiet title. (See Notice of Pendency of Action 3/10/25.)

Conclusion:

The Court initially set this matter for prove-up hearing on July 6, 2026, but now finds there are legal issues that must be addressed before a prove-up hearing. Accordingly, the Court will continue the prove-up hearing, and orders briefing on the issues identified herein. The Court must first be satisfied that all persons or entities with interests in the property have been named as Defendants, or nominal defendants. A prove-up hearing will be set once the Court is satisfied that all persons with legal interests in the property, including Wells Fargo, have received required notice.

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Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.